

		The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
10	Hinson v. Niterra North America, Inc. 2023-01345470	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of an \$375,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff; \$112,500.00 for attorneys' fees; \$19,914.60 for litigation costs (see No. 1 below); \$7,750.00 for settlement administration costs; and \$20,000.00 total PAGA penalties (\$15,000.00 to the LWDA). 1. Plaintiff's counsel is ordered to file with the court <u>by May 21, 2026</u> an itemized list of the costs set forth in paragraph 23 of the Bokhour Declaration (ROA 138). The final accounting hearing is scheduled for <u>December 10, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
11	Kimco Staffing Data Breach Cases JCCP 5321	<u>Plaintiffs' Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of a data breach class action settlement with total settlement consideration of \$1,040,000, comprised of a \$640,000 settlement fund and "remedial Business Practice Enhancements" with an asserted value of \$400,000. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for each named plaintiff's enhancement award (not to exceed; together, total not to exceed \$10,000.00); \$192,000.00 for attorneys' fees (not to exceed 30% of \$640,000.00); \$30,000.00 for litigation costs (not to exceed); and \$97,000.00 for settlement administration costs (not to exceed).

		1. The court issued two prior orders (ROA 154, 161) identifying several issues regarding the settlement for the parties to address in supplemental filings. The Second Supplemental Joint Declaration of Plaintiffs' Counsel (ROA 163) and the Hagen Declaration attached as Exhibit 1 thereto satisfactorily address the issues regarding counsel's valuation analysis, the benefits of the settlement to the class members and whether the settlement is in the class members' best interests, and defendant's insurance coverage and other available financial resources. 2. The second amendment to the settlement agreement is not signed by plaintiffs' counsel or the parties. 3. The release described in Exhibits C(1) and C(2) to the second amendment to the settlement agreement is inconsistent with the release in the second amendment to the settlement agreement and should be revised, i.e., the phrase "the operative complaint in" should be inserted after "in" and before "this Litigation." 4. The settlement agreement, the amendments thereto, and the notice packet should be attached as exhibits to the proposed order (ROA 121). The settlement agreement and amendments thereto attached to the proposed order must be fully executed by the parties and counsel. Plaintiffs are ordered to file and serve <u>by May 21, 2026</u> a revised proposed order consistent with the above, with all exhibits attached (including Exhibits C(1) and C(2) revised as stated above). The final approval hearing is scheduled for <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiffs are ordered to provide notice and to file a proof of service.
12	Murkison, et al. v. Kimco Staffing Services, Inc. 2024-01428357	<u>Status Conferences Re Stay in Case Nos. 2024-01446404 and 2024-01428357</u> The court has reviewed the parties' joint status conference statement filed May 4, 2026 in Case No. 2024-01446404 (ROA 63). The cases remain stayed pending determination regarding approval of the proposed class action settlement in JCCP No. 5321 or further order of the court. See 7/31/25 Order (ROA 53 in Case No. No. 2024-01446404). The Status Conferences Re Stay scheduled for May 14, 2026 are continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. The parties may file one joint status conference statement for both cases (Case Nos. 2024-01446404 and 2024-01428357) should they desire to do so. Clerk to give notice.